

12. 9:00 AM CASE NUMBER: N25-0837
CASE NAME: MCDONALD & MANNION VS. DAN MIERZWA
HEARING ON DEMURRER TO: TO PETITION FOR WRIT OF MANDATE
FILED BY: MIERZWA, DAN M.
TENTATIVE RULING

On January 27, 2026 this hearing was continued to March 27, 2026 at 9:00 a.m. in Dept. 32.

13. 9:00 AM CASE NUMBER: N25-0837
CASE NAME: MCDONALD & MANNION VS. DAN MIERZWA
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PETITION AND MEMORANDUM OF POINTS AND AUTHORITIES**
FILED BY: MIERZWA, DAN M.
TENTATIVE RULING

On January 27, 2026 this hearing was continued to March 27, 2026 at 9:00 a.m. in Dept. 32.

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: C23-02335
CASE NAME: KROPP V SRVUSD
***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO PLAINTIFF'S SPECIAL INTERROGATORIES. SET ONE TO DEF SAN RAMON VALLEY UNIFIED SCHOOL DISTRICT**
FILED BY: KROPP, SPENCER
TENTATIVE RULING:

Plaintiff seeks an Order compelling Defendant SAN RAMON VALLEY UNIFIED SCHOOL DISTRICT (SRVUSD)'s Further Responses to Plaintiff's Special Interrogatories, Set One and for an award of monetary sanctions in the amount of \$3,486.00 imposed upon Defendant SRVUSD and its counsel, Anne B. Miller and Brian A. Duus of Leone Alberts & Duus, pursuant to Code of Civil Procedure (CCP) §§ 2030.300 and 2023.030.¹

SPECIAL INTERROGATORY NO. 36:

IDENTIFY all steps taken by YOU to investigate Plaintiff's claim that the District failed to follow the CONCUSSION PROTOCOL as it relates to the SECOND INCIDENT, and DESCRIBE the outcome or results of that investigation.

¹ All statutory references are to CCP unless otherwise designated.

RESPONSE TO SPECIAL INTERROGATORY NO. 36:

The District objects on the ground that this interrogatory seeks information protected by the work product and attorney client privileges. It is also overbroad and vague and ambiguous as to the term "second incident." Finally, the District objects to this interrogatory as it seeks information which invades the privacy right of minors pursuant to Education Code sections 49073 - 49079, et seq., as well as The Family Educational Rights and Privacy Act (FERPA) (20 U.S.C. § 1232g; 34 CFR Part 99), and the

California and Federal Constitution. Accordingly, the District is precluded from releasing information regarding students. In light of these objections, the District cannot respond to this interrogatory.

SPECIAL INTERROGATORY NO. 37:

IDENTIFY all steps taken by YOU to investigate Plaintiff's claim that the District failed to follow the CONCUSSION PROTOCOL as it relates to the THIRD INCIDENT, and DESCRIBE the outcome or results of that investigation

RESPONSE TO SPECIAL INTERROGATORY NO. 37:

The District objects on the ground that this interrogatory seeks information protected by the work product and attorney client privileges. It is also overbroad and vague and ambiguous as to the term "third incident." Finally, the District objects to this interrogatory as it seeks information which invades the privacy right of minors pursuant to Education Code sections 49073 - 49079, et seq., as well as The Family Educational Rights and Privacy Act (FERPA) (20 U.S.C. § 1232g; 34 CFR Part 99), and the California and Federal Constitution. Accordingly, the District is precluded from releasing information regarding students. In light of these objections, the District cannot respond to this interrogatory.

SPECIAL INTERROGATORY NO. 38:

IDENTIFY all steps taken by YOU to investigate Plaintiff's claim that the District failed to follow the CONCUSSION PROTOCOL as it relates to the FOURTH INCIDENT, and DESCRIBE the outcome or results of that investigation. follow the CONCUSSION PROTOCOL as it relates to the FOURTH INCIDENT, and DESCRIBE the outcome or results of that investigation.

RESPONSE TO SPECIAL INTERROGATORY NO. 38:

The District objects on the ground that this interrogatory seeks information protected by the work product and attorney client privileges. It is also overbroad and vague and ambiguous as to the term

“fourth incident.” Finally, the District objects to this interrogatory as it seeks information which invades the privacy right of minors pursuant to Education Code sections 49073 - 49079, et seq., as well as The Family Educational Rights and Privacy Act (FERPA) (20 U.S.C. § 1232g; 34 CFR Part 99), and the California and Federal Constitution. Accordingly, the District is precluded from releasing information regarding students. In light of these objections, the District cannot respond to this interrogatory.

Plaintiff’s central premise is the District cannot “conduct an investigation into the events forming the basis of this lawsuit, obtain statements from witnesses, and then claim blanket privilege and privacy protections to avoid disclosure of relevant information, including the identity of witnesses and steps taken in response to reported injuries.” Plaintiff’s major arguments are:

[1] Defendant’s Responses are Evasive, Incomplete, and Violate the CCP.

[2] Defendant’s Privacy Objections Under the Education Code and the FERPA are Misplaced and Overbroad.

[3] Defendant Cannot Use Improper Objections to Shield Critical, Relevant Information from Discovery.

[4] The Court’s order sustaining demurrers to the claim under Education Code (Ed. Code) § 49475 does not relieve the Defendant of the obligation to respond to these interrogatories.

Plaintiff requests monetary sanctions pursuant to CCP § 2030.300, subd. (d) which provides “[t]he court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully . . . opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

Plaintiff maintains that Defendant has misused the discovery process and requests monetary sanctions, such as attorneys’ fees, pursuant to CCP § 2023.030(a). Section 2023.030(a) states, “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.”

Plaintiff’s attorney requests \$3,486.00 in attorney fees incurred in making this motion and provided the required calculation for that amount. (Nazarian Decl., ¶23.)

The parties’ meet and confer emails were voluminous and detailed. The parties have met their meet and confer obligations.

1. The District’s objection based on the Court’s ruling on the Demurrer is irrelevant.

Defendant argued that it need not respond to Special Interrogatories Nos. 36, 37, and 38 (the interrogatories) because this Court ordered that the provisions of Ed. Code § 49475 do not apply to the instant case. Plaintiff acknowledged that the Order precluded Plaintiff from proceeding with an

independent cause of action against SRVUSD under Ed. Code § 49475 for failure to discharge the mandatory duty codified therein, but maintains that Plaintiff can still seek discovery concerning concussion protocols because the court allowed Plaintiff to maintain a cause of action sounding in negligence.

One way to interpret the District's reasoning in its response is, "Because the Court sustained a demurrer on a cause of action for failure to follow concussion protocols under Education Code § 49475, plaintiff no longer has 'a claim that the District failed to follow the CONCUSSION PROTOCOL,' and thus no response to these interrogatories is warranted. The court recognizes the logic of this argument. Viewed from the perspective of the pleadings, the call of the question is problematic.

The Court finds, consistent with the Court rulings on the Demurrers on this issue, that plaintiff may assert "a claim that the District failed to follow the CONCUSSION PROTOCOL" as part of a general cause of action sounding in negligence.

The Court concludes that discovery into "any steps the District took to investigate a claim that the District failed to follow the CONCUSSION PROTOCOL" are not precluded by the Court's ruling on the demurrer. (The District might have a point, from its perspective, if it is taking the position that it cannot describe steps taken to investigate a claim it did not believe was legally sound. However, it is also possible that the District took steps to investigate a claim even if it believed it was not legally viable. In event, the subsequent sustaining of the District's demurrer does not preclude the possibility that the District took steps to investigate the Plaintiff's claim *whether or not* the District believed the premise of the claim was legally viable under the Ed. Code.)

2. The Defendant's Attorney Work Product Privilege and Attorney Client Privilege objections are well-founded.

Plaintiff argues that the District cannot "conduct an investigation into the events forming the basis of this lawsuit, obtain statements from witnesses, and then claim blanket privilege and privacy protections to avoid disclosure of relevant information, including the identity of witnesses and steps taken in response to reported injuries."

However the Plaintiff's interrogatories implicitly if not expressly call for information that may be work product or attorney-client privileged. The interrogatories do not seek merely what the District did or didn't do after the Second, Third and Fourth incidents. The interrogatories seek "*the steps SRVUSD took to investigate Plaintiff's claim* that the District failed to follow the CONCUSSION PROTOCOL," which is a direct call for investigative action the District took after learning of and in response the Plaintiff's lawsuit. By its wording, the interrogatories call for disclosure of actions that an entity would normally undertake under the advice of counsel.

California's civil work product privilege is codified in CCP § 2018.030. Subdivision (a) provides absolute protection to any "writing that reflects an attorney's impressions, conclusions, opinions, or legal research or theories." Such a writing "is not discoverable under any circumstances." *Id.*

Subdivision (b) of § 2018.030 provides qualified protection for all other work product. It provides, "the work product of an attorney, other than a writing described in subdivision (a), is not discoverable

unless the court determines that denial of discovery will unfairly prejudice the party seeking discovery in preparing that party's claim or defense or will result in an injustice."

The California Supreme Court's decision in *Coito v. Superior Court* (2012) 54 Cal. 4th 480 addressed the work product and attorney-client privilege issues at play here. In that case, the mother of a child who had drowned in the Tuolumne River sued several government entities for wrongful death. After defendant City of Modesto noticed the depositions for five of six juvenile witnesses, counsel for co-defendant California Dept. of Water Resources (the State) sent two investigators from the state Department of Justice to interview four of the juveniles. The State's counsel provided the investigators which questions he wanted asked and each interview was audio recorded. The State used the content of the interviews to ask questions at the depositions. Plaintiff sought the recordings of the interviews.

The Court held, "The recorded witness statements were entitled as a matter of law to at least qualified work product protection. The witness statements may be entitled to absolute protection if defendant can show that disclosure would reveal its "attorney's impressions, conclusions, opinions, or legal research or theories" as protected under §2018.030(a). The Court continued, "If not, then the items may be subject to discovery if plaintiff can show that "denial of discovery will unfairly prejudice [her] in preparing [her] claim ... or will result in an injustice." (§ 2018.030(b) *Coito*, 54 Cal. 4th at 486.

With regard to a list of witnesses from whom counsel had obtained statements, the *Coito* Court held,

As to the identity of witnesses from whom defendant's counsel has obtained statements, we hold that such information is not automatically entitled as a matter of law to absolute or qualified work product protection. In order to invoke the privilege, defendant must persuade the trial court that disclosure would reveal the attorney's tactics, impressions, or evaluation of the case (absolute privilege) or would result in opposing counsel taking undue advantage of the attorney's industry or efforts (qualified privilege).

Id., at 486.

Plaintiff's argument that the District is required to produce a list of witnesses does not take into account the possibility that the identity of witnesses may be the product of attorney work product, or that such disclosure would reveal the attorney's tactics, impressions or evaluation of the case and result in Plaintiff's counsel "taking undue advantage of the attorney's industry or efforts" as described in *Coito*. Plaintiff's argument, for example, that the Defendant "is aware that the full names, likenesses and identifying information of the athletes on the San Ramon Valley High School football team are publicly available through services like 'Hudl' the video recording service employed by the school," seems to imply that the Defendant is under some obligation to view the video, collect information and provide it to Plaintiff. The subject of this motion to compel is the adequacy of responses to interrogatories, it is not a request for production. And if the District had gathered this information in a manner that constitutes qualified work product, ordering disclosure would result in Plaintiff's counsel "taking undue advantage of the attorney's industry or efforts."

The court cautioned that "a statement independently prepared by a witness does not

become protected work product simply upon its transmission to an attorney.” *Coito*, 54 Cal. 4th at 495. Thus the work product privilege may not apply to statements that the District merely received from witnesses who prepared them without any prompting or direction from counsel for the District.

The *Coito* Court discussed the test for whether a witness statement is in part the product of the attorney’s work. The *Coito* Court recognized that a witness’ statement obtained through an attorney-directed interview would be in part the product of the attorney’s work because such a witness statement “would not exist but for the attorney’s initiative, decision, and effort to obtain it. *Id.*, at 495. The Court concluded, “This essential fact informs our analysis of whether absolute or qualified work product privilege applies to such witness statements.”

The *Coito* Court discussed various conditions under which absolute privilege may apply to witness statements.

Absolute privilege. It is not difficult to imagine that a recorded witness interview may, in some instances, reveal the “impressions, conclusions, opinions, or legal research or theories” of the attorney and thus be entitled to absolute protection. (§ 2018.030 (a).) This may occur not only when a witness’s statements are “inextricably intertwined” with explicit comments or notes by the attorney stating his or her impressions of the witness, the witness’s statements, or other issues in the case. (citation omitted) It also may occur when the questions that the attorney has chosen to ask (or not ask) provide a window into the attorney’s theory of the case or the attorney’s evaluation of what issues are most important. Lines of inquiry that an attorney chooses to pursue through follow up questions may be especially revealing. In such situations, redaction of the attorney’s questions may sometimes be appropriate and sufficient to protect privileged material. At other times, however, it may not do to simply redact the questions from the record, as the witness’s statements will reveal what questions were asked. Moreover, in some cases, the very fact that the attorney has chosen to interview a particular witness may disclose important tactical or evaluative information, perhaps especially so in cases involving a multitude of witnesses. ...These are circumstances where absolute work product protection may apply. .” *Coito*, 54 Cal. 4th at 495.

The Court also recognized that the fact that an attorney took a statement from a witness, standing alone, might not invoke work product protection if the statement was taken with no particular foresight, strategy, selectivity, or planning. The Court explained, “What, for example, of the situation in which an attorney sends an investigator to interview all witnesses listed in a police report, and the investigator asks few if any questions while taking the witnesses’ statements? Clearly, these statements would reveal nothing significant about the attorney’s impressions, conclusions, or opinions about the case.” *Id.*, at 495. Thus the Court held that statements taken by an attorney are not automatically entitled to absolute work product protection and must be examined on a case by case basis. *Id.*, at 495-96.

The *Coito* Court also explained that the party asserting the privilege has a burden to make a preliminary or foundational showing that disclosure would reveal his or her “impressions, conclusions, opinions, or legal research or theories.” *Id.*, at 495-96. The court directed trial courts to

make in camera inspections to determine whether work product protection applies.

The Coito Court held that witness statements obtained through an attorney-directed interview were entitled to at least qualified work product protection under § 2018.030(b). *Coito*, 54 Cal. 4th at 496.

The Coito Court expressed disapproval of attorneys “obtaining through discovery a witness statement obtained by opposing counsel through his or her initiative.” *Coito*, 54 Cal. 4th at 496.

Even when an attorney exercises no selectivity in determining which witnesses to interview, and even when the attorney simply records each witness's answer to a single (“What happened?”), the attorney has expended time and effort in identifying and locating each witness, securing the witnesses to interview, and even when the attorney simply records each witness's answer to a single (“What happened?”), the attorney has expended time and effort in identifying and locating each witness, securing the witness's willingness to talk, listening to what the witness said, and preserving the witness's statement for possible future use. *Id.*, at 496.

The Court concluded that even statements taken in this manner were entitled to qualified work product protection, and observed, “Absent a showing that a witness is no longer available or accessible, or some other showing of unfair prejudice or injustice (§ 2018.030, subd. (b)), the Legislature's declared policy is to prevent an attorney from free riding on the industry and efforts of opposing counsel.” Thus if the District is in possession of a statement and asserts a qualified work product privilege, the burden shifts to Plaintiff to establish that denial of disclosure will unfairly prejudice the plaintiff or result in an injustice.

3. The Court agrees that the call of the interrogatories potentially includes communications that may be shielded by Attorney-Client Privilege

The Court agrees that the interrogatories seeking “all steps taken,” and the “outcome of results of that investigation” calls for communications that are attorney-client privileged. In addition, “all steps taken” to investigate “Plaintiff's claims” (i.e., the claims asserted in the lawsuit) encompasses communications that may be privileged.

Plaintiff contends, “the interrogatories do not ask what the Defendant told its attorneys or what legal advice counsel provided.” (Plaintiff's Reply, 4:18-20) The plain English interpretation of “all steps” reasonably includes communications, emails or memoranda sent as “steps” taken. The Court finds there is substantial justification for the District to assert work product and attorney-client privileges.

4. Minor's FERPA Rights (Education Code “Ed. Code” § 49061(b).

The District represented to the Court that this issue is largely moot, as the students who were minors at the time of the incidents are now over the age of the majority and all but one does not object to release of their statements. SRVUSD's Opposition to Motion to Compel Further Responses to Special Interrogatories, (“Opp.”) at 11. The court anticipates hearing on the issue of the objecting witness in a separate motion, as indicated by the District's Opposition. This issue appears not to require any further court order.

Conclusion

Plaintiff is not absolutely entitled to “all the steps” and results of District investigation into the claim Plaintiff asserted in litigation. If all Plaintiff sought was a list of people known to have been present at any of the incidents, these interrogatories were too blunt of an instrument to accomplish that. Plaintiff could have asked what if anything did non-attorney employees of the District do consistent with Concussion protocols. By asking for “all the steps” taken to investigate the litigation, it does appear that Plaintiff was trying to save itself time and effort and piggy-back on the Defendant’s investigation. The three interrogatories at issue are overbroad to the extent they seek material that is potentially work product or attorney-client privileged. The Defendant’s argument to limit the scope of the response based on the sustained Demurrer was understandable but ultimately irrelevant.

Plaintiff is not entitled to take undue advantage of the Defendant’s attorney’s industry or efforts. And Defendant is not entitled to assert a blanket work product / attorney client privilege claim without a foundational showing to the Court. The FERPA issue appears to have been resolved as to all but one the students in question and does not need court intervention at this time.

Defendant is ordered to answer the interrogatories to the extent that it has information about “steps” taken which are not protected by work product / attorney client privilege. The Defendant is ordered to produce a privilege log describing responsive information that is not disclosed. The privilege log shall be in table form with eight columns from left to right titled: Item number, Date of item, Document type, Author(s), Recipient(s), Description of Item, Nature of claimed privilege (“AWP”, “QWP”, or “A/C”), and reason for the assertion of privilege.

The court does not feel that either party has misused the discovery process. Each acted to a degree on good faith, defensible arguments, and many of their disputes were resolved without bringing them to court. The District has acted with substantial justification and the court finds that awarding sanctions against the District would be unjust. The court wishes the parties’ meet and confer efforts could have gone further in negotiating the outcome that is being ordered today. The court declines to award sanctions against either party.

The Defendant is ordered to produce further non-work product and non-privileged information within 60 days of notice of entry of this order, along with a privilege log. If the Defendant is not willing to produce the privilege log to Plaintiff (if the nature of the assertion of the privilege would compromise the privilege) then the Defendant is ordered to seek an in chambers review with the court by noticed motion (or by submitting a stipulated request of the parties) that the court set a date for an in camera inspection of the log and of the responses. Plaintiff shall be entitled to notice of the date of the in camera hearing and of the results of any material ordered to be produced. Defendants shall provide a court reporter for the in camera and the resulting transcript shall be ordered confidential and sealed and not to be disclosed without further order of the court.

Although there is no prevailing party, Plaintiff is ordered to notice all parties and file entry of this order.